

General Rules to Regulate the Grazing of Cattle in Government Forest in Times of Drought

Source: <https://indiankanoon.org/doc/51306121/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Tamilnadu- Act

General Rules to Regulate the Grazing of Cattle in Government Forest in Times of Drought

TAMILNADU

India

General Rules to Regulate the Grazing of Cattle in Government Forest in Times of Drought

Rule

GENERAL-RULES-TO-REGULATE-THE-GRAZING-OF-CATTLE-IN-GOVERNMENT-FOREST-IN-TIMES-OF-DROUGHT of 1904

Published on 18 January 1904

Commenced on 18 January 1904

[This is the version of this document from 18 January 1904.]

[Note: The original publication document is not available and this content could not be verified.]

General Rules to Regulate the Grazing of Cattle in Government Forest in Times of Drought

Published vide Notification No. G. O. No. 59, Revenue, dated 18th January 1904; G. O. No. 652, Revenue, dated 17th July 1905; G. O. Ms. No. 1034, Revenue, dated 2nd May 1935; and B. P. No. 51, Press, dated 13th May 1935

1.

In these reserves which are ordinarily open to grazing, the free cutting and removal of grass and free grazing to all cattle seeking admission should, as far as possible, be allowed. Where, however, the number of such cattle exceeds the grazing capabilities of the reserve, the Collector may take steps to reduce the number of cattle to the maximum which

the reserve will support, either by the impression of a moderate grazing fee or by such other means as he may consider best suited to the circumstances. Preference should, in this event, be given to the more valuable animals.

2.

In these reserves which, for reasons of forest conservancy, are ordinarily closed to grazing, the first concession should be to allow free cutting and removal of grass. Later, grazing may be allowed either subject to the payment of fees, or if the Collector considers it desirable free.

The power (1) to allow the free cutting and removal of grass and free grazing under rule 1, (2) to impose fees and regulate the number of cattle to be admitted, where such measures are considered necessary under that rule, and (3) to grant concessions under rule 2 shall vest in the Collector who will report the action taken for the information of the Government. The Collector may also grant concessions under rule 2 at the instance of the Famine Commissioner and report the action taken for the information of the Government and the [Board of Revenue]

[The Board of Revenue was abolished by Tamil Nadu Board of Revenue Abolition Act, 1980 (Tamil Nadu Act 36 of 1980

). Now Commissioner of Land Administration, vide G.O. Ms. No. 2675, Revenue, dated the 1st December 1980.] in the Settlement Department.

In exercising these powers, the Collector must have the concurrence of the Chief Conservator of Forests in the case of forests under the control of the Forest Department.

If the Collector and the Chief Conservator of Forests disagree, the Collector should submit the case for orders to Government through the Chief Conservator. Areas may be transferred from rule 1 to rule 2 and from rule 2 to rule 1 at the Collector's discretion, if he thinks it necessary.

3.

No grazing should be allowed in areas under plantation unless the trees are old enough to be safe from attack by cattle. Areas under regeneration also, in which the trees are not old enough to be safe from injury from cattle, should not be open to grazing without special consideration.

4.

Goats should not be admitted to areas ordinarily closed to grazing, and their admission into other areas which contain forest growth of any importance should be permitted only for special reasons and on payment.

5.

Professional graziers and cattle-breeders may be permitted to share with agriculturists in such grazing as is allowed; but they should not be considered entitled to enjoy such grazing free of payment. The Sugalis are, however, entitled to the same concessions as the Agriculturists.

6.

The management of pasture reserves and control of the cattle admitted to them shall be in the hands of the Forest Officers in the case of forests managed by the Forest Department and the forest panchayats in the case of forests handed over to them for management.

Rules and Conditions Regarding the issue of Grazing Permits

(G. O. No. 45, Revenue, dated the 26th January 1897; G. O. No. 569, Revenue, dated the 13th July 1897; B. P. F. No. 336, dated the 11th August 1898; B. P. F. No. 523, dated the 24th November 1898; B. P. F. No. 407, dated the 26th September 1899; G. O. Mis. No. 3309 dated the 18th September 1899; B. P. F. No. 82, dated 5th March 1902; B. P. F. No. 315, dated the 30th November 1903; B. P. F. No. 152, dated the 2nd August 1904; G. O. No. 554, Revenue, dated the 14th June 1905; Notification No. 242, dated the 4th June 1905; on page 461, Part I of the Fort St. George Gazette, dated the 20th June 1905; G. O. No. 819, Revenue, dated the 22nd August 1906; B. P. F. No. 224, dated the 7th December 1909; G. O. No. 2733, Revenue, dated the 18th August 1910; B.P.F. No. 232, dated the 14th October 1910; G.O. Ms. No. 851, Development, dated the 6th June 1931; Notification No. 184, dated the 20th May 1931, on pages 688 and 689 of Part I of the Fort St. George Gazette, dated the 26th May 1931; G.O. Ms. No. 374, Development, dated the 20th March 1934.

Government Memorandum No. 37594, C/ii/53-2, Development, dated the 4th May 1953; Development Department Notification, dated the 4th May 1953; at page 198 of the Rules Supplement to Part I of the Fort St. George Gazette, dated the 20th May 1953) (C. C. P. Mis. No. 580/53, dated the 29th September 1953); G. O. Ms. No. 228, Forest and Fisheries, dated the 20th March 1978.

1. Grazing shall be allowed in reserve forests and in reserved lands under the control of the Forest Department only on

permits issued by the Forest Department. Permits shall, ordinarily, be issued for a whole Forest Division. These permits, however, do not cover grazing in areas which are specially closed to grazing.

2. Certain areas are liable to be closed to grazing either permanently, or temporarily. Closure is applied to areas under regeneration, to burnt areas and to those in which grazing is harmful. Forests may be closed to grazing in case of fires. Particular areas may be reserved for local, foreign or breeding cattle to the exclusion of others.

3. Except in the case of right or privilege, holder, permits shall be issued on payment of the following fees:-

Type of animals

Rate of grazing fees

1

Sheep

Re. 1-00 per head per annum.

2

Cow and bulls

Rs. 2-00 per head per annum.

3

Buffalo

Rs. 4-00 per head per annum.

4

Ass or horse

Rs. 4-00 per head per annum.

5

Elephant

Rs. 30-00 per head per annum.

6

Penning Licences per head cattle

Rs. 0.50 per annum.

(G. O. Ms. No. 228, Forest and Fisheries Department, dated the 20th March 1978)

No permits shall be issued for goats. Cattle grazing as of right or as a privilege without payment, must be covered by permits for which no charge will be made. No permit shall entitle a person to graze cattle in areas closed to grazing, or in these specially reserved for other descriptions of cattle. Permit-holders will not be entitled to any compensation in the event of closures on account of fire, or for any other reason. The Government reserve the right to early burn any part or all of the area covered by the permit, whenever it is found necessary to do so, as a preventive against fires, and no compensation will be granted for any loss sustained by the permit-holder through such early burning. The grazing fees prescribed, from time to time, are liable to be enhanced in case of fires or if grave or numerous forest offences have been committed within a certain area.

The rates of grazing fees levied for the slaughter cattle and pigs from Mysore side driven through the forests of the Nilgiris district and also for the slaughter cattle and pigs from South Coimbatore (Pollachi) side driven through the forest of Valparai Hills area shall be as follows:-

Type of animals

Rate of grazing fees

1

Cows and bulls

Re. 1 per 50 heads per day.

2

Sheep and goats

Re. 0-50 per 50 heads per day.

3

Pigs

Re. 0-50 per 50 heads per day.

Note. - This permit will be valid for three days only.

(G. O. Ms. No. 614, Forests and Fisheries Department, dated the 12th July 1976-Chief Conservator of Forests' R. Dis.

No. 18040/73)

4. (a) If a permit holder wishes to sell some of the cattle he is grazing, his permit may be altered on application free of charge and a new permit granted, without any payment, to the purchaser of the cattle if he also wishes to graze them in the same Division, provided always that the total number of cattle licensed to graze does not exceed that for which the original permit holder paid fees.

5. Buffaloes, bulls and cows, sheep and miscellaneous animals such as elephants, horses, mules, asses, etc. - Permits for all the classes of animals specified in the margin shall be printed on green paper and shall be issued either for one animal or for more than one animal of the same class.

6. The permit shall be a printed one in the following form with a counter-foil.

No.....

YearDistrict.....

Permit for grazing bulls, cows, horses or other animals in reserved forests.

To whom issued

Place of residence

Name of range

Number and description of animals

Fees paid

Remarks

1

2

3

4

5

6

Rs. P.

Special Notice

This permit is granted subject to the provisions of the Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882) and of the rules framed thereunder, any breach of which will render the offender liable to the prescribed penalties. It is also granted subject to the conditions which are printed on the reverse and any breach of these conditions will render the permit ipso facto null and void and will render, the permit holder liable to penalty under the Forest Act to the same extent and in the same manner as if he had possessed no permit.

Date of issue

Signature of the Issuing Officer.

(Reverse of the Permit).

Conditions subject to which this permit is issued and breach of anyone or more of which voids the permit.

1. The cattle covered by this permit shall, invariably, be accompanied by, and be in charge of, the owner or some herdsman or servant of the owner.

2. The owner or herdsman or servant accompanying, and in charge of, the cattle shall invariably have with him this permit and shall produce it for inspection on demand by any Forest Officer.

3. If any grazier causes damage to trees, this permit shall be liable to cancellation.

4. No cattle shall be penned within the forest except on penning permits and under the special permission of the District Forest Officer.

5. No cattle shall be allowed within specially protected areas or grazing areas closed under authority.

Note. - As above notified breach of any of the conditions subject to which this permit is issued will ipso facto make void the permit, but the District Forest Officer may remit this penalty and allow the permit to continue valid if he sees fit.

(ii)

Permit-holders are hereby warned that, should there be any outbreak of fires or any serious increase in the number of forest offences in the reserves or portions of the reserve covered by the permit, such reserves or portions of the reserves may be closed to grazing by order of the Collector of the district with the concurrence of the Chief Conservator of Forests, and upon the issue of such order, all permit for grazing in such areas will ipso facto be cancelled.

(iii)

This permit will hold good, if not otherwise voided from the date of issue until the end of
Official

Forest year

Calendar

5A.

No grazier shall carry bill-hooks or any cutting implements in to the forest.

6. The Government reserve the right to early burn any part or all of the area covered by the permit, whenever it is found necessary to do so, as a preventive against fires, and no compensation will be granted for any loss sustained by the permit-holder through such early burning.

7.

No grazier shall take with him more than one dog to accompany the cattle in reserved forests, but in case of grazing permit covering a sanctuary area, taking of dogs along with cattle is strictly prohibited.

Related AI tags, queries and research notes

Translation